



CHAPTER lxviii.

An Act to constitute a Water Board to acquire the undertaking of the Staffordshire Potteries Waterworks Company and to supply water within the limits of supply of that company and for other purposes. [1st August 1924.] A.D. 1924.

WHEREAS by the Staffordshire Potteries Waterworks Consolidation and Extension Act 1853 the Staffordshire Potteries Waterworks Company (hereinafter referred to as "the Company") were incorporated for the purposes of constructing works and supplying with water the inhabitants buildings and lands within the limits thereby defined :

And whereas by the other Acts specified in the First Schedule to this Act or some of them the Company were empowered to construct additional works their limits of supply were extended and other powers were conferred upon them :

And whereas particulars of the share and loan capital of the Company are set forth in the Second Schedule to this Act.

And whereas since the passing of the said Acts whereby the limits for the supply of water by the Company were defined changes have taken place in the areas of local government within those limits and those areas are now known by the names specified in the Fourth Schedule to this Act :

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

— And whereas it is expedient that a Board consisting of representatives of the mayor aldermen and burgesses of the county borough of Stoke-on-Trent the mayor aldermen and burgesses of the borough of Newcastle-under-Lyme and the Wolstanton Urban District Council (hereinafter referred to as “the Stoke Corporation” “the Newcastle Corporation” and “the Wolstanton Council” respectively) be constituted and empowered to acquire the undertaking of the Company upon the terms by this Act prescribed and to supply water within the limits aforesaid and that an opportunity be afforded to the other local authorities whose districts are wholly or partly within such limits of being represented on such Board as in this Act provided :

And whereas it is expedient that provision be made for extending and improving the supply of water within the limits aforesaid :

And whereas it is expedient that the Board be authorised to borrow money for the purposes of this Act and that the other provisions contained in this Act be enacted :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed by the Stoke Corporation the Newcastle Corporation and the Wolstanton Council :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Staffordshire Potteries Water Board Act 1924 and this Act and the provisions of the Acts specified in the First Schedule to this Act which are subsisting after the passing of this Act

[14 & 15 GEO. 5.] *Staffordshire Potteries* [Ch. lxviii.]
Water Board Act, 1924.

may be cited together as the Staffordshire Potteries Water Board Acts 1853 to 1924. A.D. 1924.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Establishment of Board.

Part III.—Acquisition &c. of undertaking of
Company.

Part IV.—Finance.

Part V.—Miscellaneous.

3. The following provisions of the following Act (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with and form part of this Act (that is to say) :—

Partial
incorpora-
tion of Act.

The provisions of the Commissioners Clauses Act 1847 with respect to the following matters (namely) :—

The contracts to be entered into and the deeds to be executed by the commissioners;

The liabilities of the commissioners and legal proceedings by or against the commissioners.

4. The several words and expressions to which meanings are assigned by the Act partially incorporated herewith or by the Public Health Acts shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction. Provided that for the purposes of this Act :—

Interpreta-
tion.

In the provisions of the Commissioners Clauses Act 1847 incorporated with this Act “the commissioners” means the Board.

And in this Act unless the subject or context otherwise requires :—

“The Board” means the Staffordshire Potteries Water Board incorporated by this Act;

“The Stoke Corporation” means the mayor aldermen and burgesses of the county borough of Stoke-on-Trent;

“The Newcastle Corporation” means the mayor aldermen and burgesses of the borough of Newcastle-under-Lyme;

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924;

- “The Wolstanton Council” means the Wolstanton United Urban District Council;
- “The Company” means the Staffordshire Potteries Waterworks Company;
- “The Acts of the Company” means the provisions of the Acts specified in the First Schedule to this Act which were subsisting immediately before the appointed day and of any other special Act or Order then relating to the Company or their undertaking;
- “The Act of 1922” means the Staffordshire Potteries Waterworks Act 1922;
- “The undertaking of the Company” includes all waterworks mains pipes machinery plant (fixed and moveable) stock in trade lands buildings debenture stock registers and books (other than the books relating exclusively to the preference and ordinary stockholders of the Company and the minute books of the directors of the Company) deeds agreements engineers’ opinions and reports plans descriptions of works vouchers letter books records of business and proceedings and all other the real and personal property assets and effects of whatsoever nature and all the rights powers and privileges vested in or belonging to or had and enjoyed by the Company at the appointed day except such a sum of money as may be required to make up the dividends to be paid by the Company to the holders of the preference stocks and to the holders of the ordinary stocks of the Company in respect of the period from the twenty-fifth March one thousand nine hundred and twenty-four to the appointed day to the full amount payable to them at the rate of five per centum per annum and ten per centum per annum and seven per centum per annum respectively;
- “The limits of supply” means the limits prescribed by this Act for the supply of water by the Board;
- “Constituent authority” means the council of any borough urban or rural district for the time being authorised to appoint a member or members of the Board;

“Constituent district” in relation to the Stoke A.D. 1924.

Corporation the Newcastle Corporation and any constituent authority which is an urban district council means the borough or district (as the case may be) as for the time being constituted of any such authority and in relation to a constituent authority (if any) which is a rural district council means the contributory places therein in which a supply of water is for the time being furnished by the Board;

“The county council” means the county council of Stafford;

“Assessable value” in relation to a constituent district means in the case of a borough or urban district the value of the property (other than the property if any which is supplied with water by the constituent authority) in the constituent district as ascertained for the purpose of assessment to the consolidated rate of the parish of Stoke-on-Trent or the general district rate (as the case may be) and in the case of a rural district the value of the property (other than the property if any which is supplied with water by the constituent authority) in any contributory place therein in which a supply of water is furnished by the Board as ascertained for the purpose of assessment to a separate rate levied in respect of special expenses within the meaning of the Public Health Act 1875 subject in regard to the properties mentioned in paragraph (b) of subsection (1) of section 211 and in section 230 of the said Act (as respectively amended by subsequent Acts) to the reduction provided for in the said paragraph and section but not subject to any reduction under paragraph (a) of subsection (1) of the said section 211;

“The appointed day” means the thirty-first day of December one thousand nine hundred and twenty-four;

“The day of transfer” means the day on which the undertaking of the Company shall be transferred to the Board under the provisions of the section of this Act of which the marginal note is “Transfer and vesting of undertaking of Company to and in Board”;

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

“The clerk” means the clerk of the Board;

“The treasurer” means the treasurer of the Board;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Board;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“The revenues of the Board” includes the revenues of the Board from time to time arising from their undertaking or from any land or other property for the time being belonging to the Board.

PART II.

ESTABLISHMENT OF BOARD.

Establishment of Board.

5.—(1) A board to be called the “Staffordshire Potteries Water Board” shall be established for the purpose of acquiring by purchase and of completing managing and carrying on the undertaking of the Company and

generally for the purpose of supplying water within the limits of supply and for carrying the powers of this Act into execution and also for the purpose if deemed expedient from time to time of making application to Parliament for power to acquire other water undertakings or parts thereof in the limits of supply. A.D. 1924.
—

(2) The Board shall be a body corporate with a common seal having power to acquire and hold land without licence in mortmain.

(3) The constitution of the Board shall subject to alteration as hereinafter provided be as follows:—

Fifteen members to be appointed by the Stoke Corporation;

Three members to be appointed by the Newcastle Corporation;

Four members to be appointed by the Wolstanton Council;

One member to be appointed by the county council:

Provided that if within three months after the passing of this Act any other local authority whose district is situate wholly or partly within the limits of supply shall so desire and of such desire shall give notice in writing to the clerk then such authority shall become a constituent authority entitled to appoint one member of the Board subject to alteration as hereinafter provided.

(4) The chairman and the vice-chairman of the Board shall be appointed by and from the members of the Board.

6. Subject to the provisions of this Act the provisions of the Third Schedule to this Act with respect to the constitution and proceedings of the Board shall have effect. Proceedings of Board.

7. At the expiration of the period of ten years after the appointed day and at the expiration of each subsequent period of ten years the Minister of Health may on the application of any constituent authority and after giving notice of the application to the other constituent authorities and considering any objections or representations made by them by order alter the number and proportion of members to be appointed by the constituent Power to alter number of members.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924: — authorities and may by such order alter the total number of members of the Board and may make any provisions incident to or consequential on such alteration including an alteration in the number of members to form a quorum. Provided that if the Minister shall make any order under this section the proportion of members to be appointed by the constituent authorities or any of them respectively shall be based upon the assessable value for the time being.

PART III.

ACQUISITION &C. OF UNDERTAKING OF COMPANY.

Sale and purchase of undertaking of Company.

8.—(1) The Company shall sell and the Board shall purchase the undertaking of the Company as a going concern on the appointed day.

(2) The consideration for the sale and purchase shall be—

(a) The payment by the Board to the Company on the appointed day of the sum of eight hundred and forty thousand pounds in cash;

(b) The assumption by the Board of the debts and liabilities of the Company on capital and revenue account outstanding on the appointed day; and

(c) The payment by the Board to the Company of the costs charges and expenses of the Company in respect of the transfer of the undertaking of the Company to the Board.

(3) If the said sum of eight hundred and forty thousand pounds is not paid on the appointed day the Board shall pay to the Company interest thereon at the rate of six per centum per annum from the appointed day until the day of actual payment thereof.

Transfer and vesting of undertaking of Company to and in Board.

9. On payment by the Board to the Company of the said sum of eight hundred and forty thousand pounds in accordance with the provisions of this Act the undertaking of the Company shall by virtue of this Act and without further assurance or other authority become and shall thenceforth stand transferred to and vested in and belong to the Board subject to the debenture stocks of the Company.

10.—(1) The debenture stocks of the Company and the interest thereon shall after the transfer of the undertaking of the Company and until discharged be a first charge on the undertaking of the Board and notwithstanding the transfer of the undertaking of the Company to the Board remain a trustee investment :

A.D. 1924.

Debenture
stocks of
Company to
be a first
charge on
under-
taking.

Provided that nothing in this Act contained shall affect the priority of any rentcharge or sum reserved by or payable under any conveyance or lease granted to the Company in pursuance of the Acts of the Company or any Acts incorporated therewith and which is entitled to rank in priority to or *pari passu* with the interest on the debenture stock of the Company :

Provided that if any person desires any debenture stock of the Company held by him at the day of transfer to be redeemed and of such his desire shall within two months after that day give to the Board notice in writing in that behalf the Board shall pay to such person (a) such a sum of money as if invested in local loans stock on the day before the day of payment will return to him the same income as the debenture stock of the Company held by him and (b) the interest accrued due on his debenture stock up to the day of payment and thereupon his debenture stock and all claims in respect thereof shall be cancelled and extinguished.

(2) A copy of this section shall within one month after the day of transfer be sent by the Board by registered post to every person whose name and address was entered in the registers as a holder of debenture stock of the Company on that day.

11.—(1) The Board may by agreement with the holder of any portion of either of the debenture stocks of the Company at any time substitute for the debenture stock so held by him any stock or other security of the Board or pay off the amount secured by such stock and redeem the security with moneys raised under the powers of this Act and the holder of any such debenture stock whether or not he is a trustee or under any disability may agree with the Board to accept any stock or other security of the Board in lieu of money in consideration for his debenture stock and the Board may in either of such cases make such reasonable payment as they may think fit to the holder of any such debenture stock for his consent or for otherwise compensating him for

Power to
redeem
debenture
stocks of
Company.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 Geo. 5.]
Water Board Act, 1924.

A.D. 1924. — the substitution or the payment of or redemption of his security and any such payment may be either by money or by stock or other security of the Board or partly by one and partly by the other.

(2) Any stock or other security under this section substituted for any debenture stock shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or subject to which the debenture stock was held immediately before the substitution and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the same and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part as the case may be of the substituted stock or security.

Exercise of
powers until
transfer.

12. Until the day of transfer the Company shall maintain and carry on their undertaking as heretofore in the ordinary course of business maintaining normal quantities of consumable stores but the Company shall not without the previous consent of the Board under the hand of the clerk or until the appointment of the clerk without the previous consent of the Stoke Corporation under the hand of their town clerk—

- (a) make or enter into any new contract agreement liability or other obligation in respect thereof which shall involve a capital expenditure of more than five thousand pounds;
- (b) make any general alteration in the rates rents or charges which were being demanded and taken by the Company on the twenty-third day of November one thousand nine hundred and twenty-three; nor
- (c) increase the salary or wages which were payable to or alter the terms which were applicable to any officer or servant of the Company on the fifteenth day of May one thousand nine hundred and twenty-four Provided that the consent of the Board to any such increase of salary or wages shall not be unreasonably withheld.

Inspection
of books
&c.

13. The Board before the day of transfer and thereafter the Company their solicitors and agents

shall be entitled to have access to and to take copies of all documents to be handed over or handed over to the Board so far as the same may be necessary for the purposes of enabling the Board or the Company to execute any of the provisions of this Act and the Board shall also be entitled at any time and for the like purpose to have access to and to take copies of all documents to be retained by the Company. A.D. 1924.

14. The receipt in writing of three directors of the Company for any money paid to the Company shall effectually discharge the Board from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof and if from any cause the Board are unable to obtain any such receipt from the directors of the Company they may pay the money due to the Company into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Board by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the Company. Receipt for purchase money.

15.—(1) The production of a King's Printer's copy of this Act duly stamped together with a receipt for the purchase-money purporting to be signed by three directors of the Company or by the cashier of the Bank of England shall (unless it can be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Board of the undertaking of the Company. Evidence of transfer.

(2) If the amount of consideration for the transfer of the undertaking of the Company to the Board under this Act is not ascertained before the appointed day the date of the final ascertainment of that amount shall for the purposes of section 12 of the Finance Act 1895 (which relates to stamp duty on property vested by Act of Parliament) be treated as the date of vesting.

16. The Company shall at the cost of the Board as soon as possible after the appointed day make up the accounts of the undertaking of the Company for the period from the twenty-fifth day of March one thousand Company to make up accounts.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924. nine hundred and twenty-four to the appointed day as near as may be in the usual form and have the same audited by the auditors of the Company and shall deliver copies of such accounts to the Board. Such accounts when so audited shall be accepted by the Company and the Board as evidence of all matters of account stated therein.

If it shall appear from such accounts that the Company have not applied or retained to or for the payment of dividends a sufficient sum to pay in respect of the period covered by such accounts the full dividends at the rate of five per centum per annum on the preference stocks and ten per centum per annum and seven per centum per annum as the case may be on the ordinary stocks of the Company the amount of such deficiency shall be paid by the Board to the Company within thirty days from the delivery of such accounts to the Board.

Winding up
of Company. 17.—(1) From and after the day of transfer the Company shall subsist only for the purposes of this section and the last preceding section of this Act and the directors of the Company who are in office at the day of transfer and the survivors or survivor of them shall continue in office without re-election and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

If the number of directors of the Company be reduced by death resignation or otherwise below three before the Company is completely wound up the continuing directors or director shall from time to time choose a stockholder or stockholders of the Company to fill the vacancy or vacancies so caused.

(2) Forthwith after the day of transfer the directors of the Company shall proceed to wind up the affairs of the Company and after paying to each holder of preference stock and ordinary stock of the Company such a sum as will make up the dividends paid to him in respect of the period from the twenty-fifth day of March one thousand nine hundred and twenty-four to the day of transfer to the full amount calculated at the rate of five per centum per annum and ten and seven per

centum per annum (as the case may require) respectively and to each holder of preference stock of the Company the sum of one hundred and five pounds in respect of each one hundred pounds of such stock held by him (and so in proportion for any fractional part of one hundred pounds) and after paying the expenses and liabilities incurred in and about the winding up of the Company shall pay and distribute the net moneys rateably in the proportion of ten and seven for an equal nominal amount of ten per centum and seven per centum ordinary stock respectively to and among the several persons who at the day of transfer were the registered holders of ten per centum ordinary and seven per centum ordinary stock in the capital of the Company or their respective executors administrators or assigns according to the holding of each such stockholder For the purposes of this subsection the several persons whose names shall appear in the books of the Company at the day of transfer to be the proprietors of preference or ordinary stock therein shall unless the contrary be proved to the satisfaction of the directors be considered to be the stockholders of the Company to whom the payments directed by this section are to be made and the receipt in writing of such persons or of their executors or administrators or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the Company and the directors thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the stock or interest in respect of which the money is paid. A.D. 1924.

(3) Where the directors of the Company are for six months after the day of transfer unable after diligent inquiry to ascertain the person to whom any money ought to be paid or who can give an effectual receipt for the same they may pay the same into the High Court or if not exceeding five hundred pounds into the county court of Staffordshire holden at Stoke-on-Trent under any Act for the time being in force for the relief of trustees and every such payment shall effectually discharge the Company and the directors thereof from all further liability with respect to the money so paid in.

(4) Upon the purposes specified in this section being fulfilled the Company shall ipso facto be dissolved.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

—
Board to
pay debts
and to be
entitled to
rents after
transfer.

18.—(1) The Board shall forthwith after the day of transfer pay and discharge (so far as the same shall not have been previously discharged by the Company) the debts outgoings and liabilities properly chargeable including pensions and superannuation allowances being at the day of transfer payable by or chargeable against the Company and shall indemnify the Company from all claims in respect thereof and shall be entitled to all rates rents profits and other receipts receivable in respect of the undertaking of the Company.

(2) During the period between the appointed day and the day of transfer the undertaking of the Company shall be deemed to have been carried on by the Company as agents for the Board and as and from the appointed day the Board shall be and be deemed to have been alone liable for all debts and liabilities including interest on debenture stock contracted or incurred by the Company in carrying on the undertaking of the Company in accordance with the provisions of this Act.

Under-
taking of
Company
to remain
subject to
incum-
brances
easements
&c.

19. The undertaking of the Company shall be transferred to the Board subject to all leases tenancy agreements easements liabilities covenants and obligations affecting any lands or buildings or any other part of the said undertaking The Board shall accept the title of the Company to the said undertaking and shall not raise any objection or requisition with regard thereto.

Savings.

20. Notwithstanding the sale to the Board of the undertaking of the Company the following provisions shall have effect (that is to say):—

Actions not
to abate.

(a) If at the day of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the Company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of such repeal sale or assignment but the same may be continued prosecuted and enforced by against or in favour of the Board as and when it might have been continued prosecuted and enforced by against or in favour of the Company if this Act had not passed;

Contracts
with Com-
pany to be

(b) Except as in this Act otherwise expressly provided all agreements conveyances contracts

deeds and other instruments entered into or made with or by the Company and in force at the day of transfer shall so far as the same relate to or affect the undertaking of the Company be as binding and of as full force and effect in every respect against or in favour of the Board and may be enforced as fully and effectually as if instead of the Company the Board had been a party thereto;

A.D. 1924.
 —
 binding on
 Board.

(c) All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the Company shall be admitted in evidence in respect of the same or the like matter for or against the Board;

Books &c.
 to remain
 evidence

(d) All rates rents and charges in connection with the undertaking of the Company which have been lawfully made charged or imposed and which at the day of transfer are due or if this Act had not been passed would have accrued due shall continue in force and be due and payable to and may be collected recovered and enforced by the Board as and when the same might have been payable to and collected recovered and enforced by the Company if this Act had not been passed.

Rates or
 rents to
 continue in
 force.

21.—(1) The Board shall on the day of transfer pay as compensation for loss of office:—

Compensa-
 tion to
 directors
 and audi-
 tors.

(a) To such of the directors of the Company as were in office both on the fifteenth day of May one thousand nine hundred and twenty-four and on the appointed day such a sum as represents seven years purchase of the sum corresponding to their proportion of the total fees payable to the directors of the Company for the year ending on the twenty-fifth day of March one thousand nine hundred and twenty-four; and

(b) To such of the auditors of the Company as were in office both on the fifteenth day of May one thousand nine hundred and twenty-four and on the day of transfer such a sum as represents three years purchase of the sum corresponding to their proportion of the total fees payable

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

to the auditors on the twenty-fifth day of March one thousand nine hundred and twenty-four.

(2) The sums payable under this section shall be distributed amongst the directors and auditors entitled to compensation respectively in such proportions as the directors or a majority of them may determine.

Compensation to officers and servants.

22.—(1) The Board shall pay compensation to any officer or servant (other than the directors and auditors of the Company and ordinary workmen) in the regular employment of the Company who shall not be retained by the Board in the same or similar office or employment and at the remuneration in and at which he was employed by the Company at the day of transfer in respect of any loss of office or loss or diminution of salary or income by reason of the transfer of the undertaking of the Company to the Board and no such officer or servant who shall have been in the service of the Company for fifteen years previous to the day of transfer shall lose his right to compensation as aforesaid by reason of his declining to enter into or continue in the service of the Board.

(2) The amount of compensation payable to any such officer or servant under this section shall be an annual amount calculated in accordance with the following scale :—

- (i) For each completed year of service one equal sixtieth part of the loss or diminution suffered by him in the annual salary and emoluments of his office as received by him for the year ending December thirty-first one thousand nine hundred and twenty-four but not exceeding in any case forty such sixtieths;
- (ii) In calculating the number of years service of any such officer or servant as aforesaid the following additions shall be made :—

For twenty years of service and upwards ten years;

For fifteen years of service or more than fifteen but less than twenty such years seven years;

For ten years of service or more than ten but less than fifteen such years five years;

For five years of service or more than five A.D. 1924.
but less than ten such years three years; —

Under five years of service one year :

Provided that in calculating the number of years service of Robert Charles Frain and Percy Wilkinson there shall be added in each case ten years ;

(iii) Where any such officer as aforesaid was temporarily absent from his employment whilst serving in His Majesty's forces during the war such period of temporary absence shall be reckoned as service under the Company.

(3) If within a period of five years after the date of transfer the services of any such officer or servant are dispensed with by the Board because his services are not required and not on account of misconduct or incapacity or the salary of any such officer or servant is reduced on the ground that his duties have been diminished in consequence of the provisions of this Act the officer or servant shall be entitled to compensation in accordance with the provisions of subsection (2) of this section.

(4) In awarding after the day of transfer pensions or calculating superannuation allowance to any such officer or servant taken over from the Company the Board shall take into account the continuous service with the Company of such officer or servant as if the same had been service with the Board.

23. As from the appointed day all the powers rights privileges authorities duties and obligations of the Company under the Acts of the Company shall be by virtue of this Act transferred to vested in and imposed on the Board and those Acts shall be read and have effect as if the Board had been therein named instead of the Company subject nevertheless and according to the following exceptions and provisions (namely) :—

Application
of Com-
pany's Acts
to Board.

(1) The provisions of the Companies Clauses Consolidation Act 1845 and of the Companies Clauses Act 1863 as amended by subsequent Acts incorporated with the Acts of the Company shall not apply to the Board :

(2) None of the provisions of the Acts of the Company or of any Acts incorporated therewith in any matter relating to the share or loan.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

capital of the Company or to any limitation of the amount of profit to be received by the Company or undertakers or to the constitution meetings or directors of the Company shall apply to the Board :

- (3) In the provisions of the Waterworks Clauses Acts 1847 and 1863 incorporated with the Acts of the Company " the undertakers " shall mean the Board :
- (4) In the provisions of the Lands Clauses Acts incorporated with the Acts of the Company " the promoters of the undertaking " shall mean the Board :
- (5) In the provisions of the Railways Clauses Consolidation Act 1845 incorporated with the Acts of the Company " the Company " shall mean the Board :
- (6) Section 14 (Period for compulsory purchase of land) of the Act of 1922 shall be read and have effect as if the period of three years from the passing of this Act had been mentioned therein instead of the period of three years from the passing of that Act :
- (7) Section 41 of the Act of 1922 is hereby repealed.

Dates for
payment of
water rates.

24. Notwithstanding anything contained in the Acts of the Company or in section 70 (Rates to be paid quarterly in advance) of the Waterworks Clauses Act 1847 the Board may from time to time by resolution declare that the water rates and charges to be levied and taken either by them or by any constituent authority or local authority within the limits of supply on their behalf under the provision of the section of this Act of which the marginal note is " As to collection of rates &c." and either throughout the limits of supply or in any borough or district within those limits and named in such resolution shall be payable at such date or dates as the Board shall from time to time appoint Provided that no person shall be compellable to pay such water rates or charges for any longer period in advance than three months.

Provision
for regu-
lating rates

25.—(1) Until altered in accordance with the provisions of subsection (2) of this section the rates charged by the Board for the supply of water by meter for use

within the portion of the limits of supply described in Part I. of the Fourth Schedule to this Act shall not exceed the rates specified in the scale according to which the Company supplied water by meter within the same area on the first day of January one thousand nine hundred and twenty-four and thereafter such altered rates shall apply until the same are again altered under the provisions of this section.

A.D. 1924.

—
for meter
supplies.

(2) Whenever any increase or decrease is made in the rates charged for the supply of water for domestic purposes within the portion of the limits of supply aforesaid a proportionate increase or decrease shall be made in the rates which may be charged for the supply of water by meter within the same portion of the limits. Provided that for the purposes of this section fractions of a penny in a rate for the supply of water by meter shall be treated as a penny.

26. Notwithstanding anything in this Act contained the following provisions for the protection and benefit of the rural district council of Stone (in this section referred to as "the council") shall apply and have effect unless otherwise agreed in writing between the council and the Board (that is to say) :—

For pro-
tection of
Stone Rural
District
Council.

- (1) As from the day of transfer the provisions of this subsection instead of the provisions of the agreements made between the council of the one part and the Company of the other part and dated respectively the thirty-first day of March one thousand nine hundred and eight and the twenty-third day of February one thousand nine hundred and twelve (as modified in the case of the former agreement by agreements made between the same parties and dated the eighteenth day of June one thousand nine hundred and eight and the twenty-third day of February one thousand nine hundred and twelve) shall apply to and in respect of the lines of pipes laid by the Company in pursuance of the provisions of either of those agreements and to the supplies of water which are then being given or would but for this Act thereafter be given thereunder (which supplies are in this subsection referred to as "the Meir Heath

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

supplies ” and “ the Oulton supplies ” respectively) :—

(i) Each such supply shall be given by the Board instead of by the council;

(ii) Until the thirty-first day of March one thousand nine hundred and thirty-seven or the date on which the revenue received by the Board in respect of the Meir Heath supplies or the Oulton supplies shall amount in the former case to one hundred and forty-five pounds per annum and in the latter case to one hundred and seventy pounds per annum whichever shall be the earlier the rates and charges to be demanded and taken by the Board in respect of the Meir Heath supplies or the Oulton supplies as the case may be shall be—

(a) for water supplied for domestic purposes the rate for the time being demanded by the Board for water supplied for those purposes to premises of the same rateable value in the county borough of Stoke-on-Trent with an addition of fifty per centum of such rate; and

(b) for water supplied for other than domestic purposes in the case of any consumer so supplied at the day of transfer the charge or price then being paid by him in respect thereof and in the case of any consumer not so supplied at the day of transfer the charge or price at which water is for the time being supplied for similar purposes in the county borough of Stoke-on-Trent with an addition of fifty per centum;

and if in any year the revenue received by the Board in respect of the Meir Heath supplies or the Oulton supplies shall not amount to the sum of one hundred and forty-five pounds in the case of the former supplies and one hundred and seventy pounds in the case of the latter supplies the council shall forthwith pay to the Board the difference between the amount of such revenue and the sum of

one hundred and forty-five pounds or one hundred and seventy pounds as the case may be: A.D. 1924.

- (2) Within twelve months after the day of transfer the Board shall at their own expense lay down such line or lines of pipes as may be necessary for the proper supply of water to the village of Tittensor in the parish of Stone Rural including Chase Road and Winghouse Lane and the lane leading thereout to the cottages recently erected by the council either (a) from the existing water mains at Hayfields in the parish of Barlaston along the road from Barlaston to the main road from Stone to Newcastle along the said main road to Chase Road and Winghouse Lane and along the said Chase Road and Winghouse Lane to the Groundslow Sanatorium or (b) from the water tower in the parish of Swynerton along the road to Sandyford in the said parish and shall within the same period afford a supply of water by means of the said lines of pipes to the inhabitants of the said village of Tittensor and the said Chase Road and Winghouse Lane:
- (3) Except as provided by subsection (1) of this section the rates and charges demanded and taken by the Board for water supplied in the district of the council shall not at any time exceed the rates and charges for the time being demanded and taken by the Board for water supplied to premises of the same rateable value and for the same purposes in the county borough of Stoke-on-Trent:
- (4) The provisions of section 35 of the Waterworks Clauses Act 1847 as amended by section 19 (Application of section 35 of Waterworks Clauses Act 1847) of the Act of 1922 shall apply to the Board in relation to the lines of pipes referred to in subsections (1) and (2) of this section and in the application of those provisions to any requisition which may be made by the council or by owners or occupiers of premises for a supply of water from any of such lines of pipes regard shall not be had to the expense of providing and laying down the same Provided

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

that the Board shall not be bound to lay on at any time the supply of water for houses to any top storey not being at least twenty feet below the service reservoir from whence the supply is taken:

- (5) If any difference arises at any time between the Board and the council touching the provisions of this section or anything to be done or not to be done thereunder such difference shall be settled by arbitration by an engineer to be agreed upon between the Board and the council or failing agreement to be appointed by the President of the Institute of Civil Engineers on the application of either party and the Arbitration Act 1889 or any statutory modification thereof shall apply to the arbitration.

Revision of rates.

27. Subject to the provisions of the section of this Act of which the marginal note is "Provision for regulating rates for meter supplies" the Minister of Health may if he thinks fit from time to time on the application of the Board or of a local authority having jurisdiction within the limits of supply made at any time after the day of transfer or if any such local authority shall not make such an application within one month after being requested so to do by not less than twenty consumers of water within their district then on the like application of such consumers by order vary either by way of increase or decrease the rates and charges for the supply of water authorised by section 38 (Rates for supply of water for domestic purposes) and section 39 (Rates for supply by meter) of the Act of 1922:

Provided that the rates and charges prescribed in any such order shall be sufficient and no more than sufficient so far as can be ascertained to enable the undertaking of the Board to be carried on without loss after providing for the matters firstly to fifthly set out in the section of this Act of which the marginal note is "Application of revenue."

Definition of limits of supply.

28. As from the day of transfer the limits of the Board for the supply of water shall be deemed to include the various districts and parts of districts and parishes and townships set forth in the Fourth Schedule to this

Act Provided that the Board shall not supply water in any of the parishes or townships set forth in Part II. of that schedule except upon the terms and conditions and subject to the provisions of section 14 (Extension of limits of supply) of the Staffordshire Potteries Waterworks Act 1888. A.D. 1924.
Provided also that any area which may be hereafter annexed to or included in the district of any of the constituent authorities shall after such annexation or inclusion be deemed to be within the district of such authority for all the purposes of this Act.

29.—(1) Subject to the provisions of subsection (2) of this section the Board shall have and may exercise for any of the purposes of this Act within and without the limits of supply the like powers which a local authority would have under section 54 of the Public Health Act 1875 with respect to the carrying of water mains within and without the district of such authority. Powers in relation to water mains.

(2) The powers by this section conferred upon the Board shall not be exerciseable with respect to the carrying of water mains in or under any street repairable by the inhabitants at large and situate within the limits of supply.

30. The Board may retain hold purchase or take on lease dwelling-houses for persons employed by them for the purposes of their undertaking and may erect and maintain dwelling-houses for such persons upon any lands for the time being belonging to the Board for the purposes of their undertaking and (subject to the terms of the lease) upon lands for the time being leased to the Board for the purposes of their undertaking. Dwelling-houses for persons in Board's employ.

31. Notwithstanding anything in the Lands Clauses Acts the Board may retain hold and use for the purposes of their undertaking for such time as they think fit any lands for the time being belonging to them and may from time to time sell lease exchange or otherwise dispose of the same in such manner for such consideration and on such terms and conditions as they think fit and may execute and do any deed act or thing proper for effectuating any sale lease exchange or disposition and on any such sale lease exchange or disposition may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale lease exchange or disposition subject to such reservations accordingly and may also make any such Power to retain sell &c. lands.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924. sale lease exchange or disposition subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

PART IV.

FINANCE.

Power to borrow.

32.—(1) The Board may from time to time borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column of the said table (namely) :—

1	2	3
(a) For the purchase of the undertaking of the Company and for defraying the costs and expenses incident to such purchase and to the transfer of the said undertaking to the Board (other than the costs of this Act) and for the payment of any other sums payable by the Board to the Company or to the debenture stockholders of the Company or to the directors or auditors or any of the officers or servants of the Company by way of compensation under this Act.	The sum requisite.	Fifty years from the appointed day.
(b) For working capital - - -	£50,000	Ten years from the date or dates of borrowing.
(c) For paying any sums payable by the Board under the section of this Act of which the marginal note is "Costs of Act."	The sum requisite.	Five years from the appointed day.

(2)—(a) The Board may also with the consent of the Ministry of Health borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as

“the prescribed period”) as may be prescribed by the Ministry of Health. A.D. 1924.

(3) In order to secure the repayment of the money borrowed or re-borrowed under this Act and the payment of the interest thereon the Board may mortgage or charge the revenues of the Board.

33.—(1) The Board may raise all or any moneys which they are authorised to borrow or re-borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others and for the purposes of such issue under the Local Loans Act 1875 the Board shall be deemed a local authority under that Act and the revenues of the Board shall be deemed to be the local rate as defined by the said Act. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act. Mode of raising money.

(2) The Board shall be deemed to be an urban authority within the meaning of Part V. (Stock) of the Public Health Acts Amendment Act 1890 and to have adopted that Part of that Act. Provided that the Ministry of Health may by order make all such variations additions amendments and adaptations of all or any of the provisions contained in that Part of the said Act or in the regulations made thereunder as may be necessary to make the same applicable.

(3) All mortgages debentures annuity certificates and stock granted or issued by the Board under any statutory borrowing power shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the granting or issue of the security or on any other account whatsoever.

34. The following sections of the Public Health Act 1875 with any necessary modifications shall extend and apply to mortgages granted under this Act:— Provisions of Public Health Act 1875 as to mortgages to apply.

Section 236 (Form of mortgage);
Section 237 (Register of mortgages);
Section 238 (Transfer of mortgages).

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

Mode of
payment off
of money
borrowed.

35. The Board shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months of the date of borrowing.

Sinking
fund.

36.—(1) If the Board determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either :—

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called “ a non-accumulating sinking fund ”; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as may be approved by the Ministry of Health will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called “ an accumulating sinking fund ”;

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Board being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Board towards the equal annual payments to the fund.

(4) The Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is

formed Provided that in the case of an accumulating sinking fund the Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1924.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Board.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Board in addition to the payments provided for by this Act.

(7) If it appears to the Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Ministry of Health that any such increase is necessary the Board shall increase the payments to such extent as the Ministry of Health may direct.

(8) If the Board desire to accelerate the repayment of any loans they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations

A.D. 1924. thereon (in the case of an accumulating sinking fund) will in the opinion of the Ministry of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Ministry of Health be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Ministry of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may with the consent of the Ministry of Health discontinue the annual payments to such sinking fund until the Ministry of Health shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Board with the consent of the Ministry of Health may determine.

Alternative
application
of sinking
fund.

37. The Board may at any time apply the whole or any part of any sinking fund as follows:—

(1) Where the Board are authorised by any borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power to raise the said money either wholly or partially by using for such purpose any money for the time being forming part of the sinking fund and moneys so raised shall for the purposes of this Act be deemed to be moneys borrowed under a borrowing power Provided that when exercising this power the Board shall:—

(a) Withdraw from the sinking fund a sum equal to the amount of the borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(b) Credit the sinking fund with the repayment of an amount of the moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amounts so credited shall be deemed to be moneys discharged by application of such sinking fund under subsection (4) of the section of this Act of which the marginal note is "Sinking fund";

A.D. 1924.
—

(c) Debit the account of the borrowing power proposed to be exercised with an amount of the moneys equal to the sum withdrawn from the sinking fund and thereupon the borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of this Part of this Act as to repayment and re-borrowing shall apply thereto accordingly :

- (2) When any of the moneys are discharged by the application of any part of the sinking fund the moneys so discharged shall be deemed to be in respect of such one or more of the borrowing powers under which the moneys for the repayment of which the sinking fund is established were borrowed and if in respect of more than one in such proportions as the Board shall determine Provided that the amount of the moneys deemed to be discharged in respect of any borrowing power shall not exceed the amount of the contributions paid into the sinking fund in respect of that borrowing power and the accumulations (if any) thereon.

38. A person lending money to the Board under this Act shall not be bound to inquire as to the observance by them of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection
of lender
from in-
quiry.

39. The Board shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose

Board not
to regard
trusts.

A.D. 1924. — name any loan or security for loan stands in the register of the Board shall be a sufficient discharge to the Board in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Board have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appoint-
ment of
receiver.

40.—(1) Any mortgagee of the Board by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

41.—(1) The Board shall have power :—

(a) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended forthwith to be repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Board in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Board shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Board shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid :— A.D. 1924.

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

42.—(1) The Board shall make provision for the extinction of so much of the debenture stocks of the Company as shall not be redeemed under the provisions of the section of this Act of which the marginal note is “Debenture stocks of Company to be a first charge on undertaking” by means of a sinking fund so as to purchase and extinguish or to be in a position to purchase and extinguish so much of the said stocks as aforesaid within a period of fifty years from the appointed day and if at the end of that period the said stocks are not wholly extinguished then the Board shall so long as they are liable to pay interest thereon apply in or towards payment thereof the annual income arising from the sinking fund provided under this section. Sinking fund for debenture stocks of Company.

(2) The foregoing provisions of this Act with reference to sinking funds shall extend and apply with any necessary modifications to the sinking fund to be provided under this section and for the purposes thereof the prescribed period shall be the period of fifty years from the appointed day.

(3) The Board may at any time apply the whole or any part of the sinking fund to be provided under this section in or towards the purchase of so much of the said debenture stocks as aforesaid or any part thereof. Provided that if such fund be an accumulating sinking fund the Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4) (a) At any time before the expiration of the prescribed period the Board may borrow at interest such money as they may require for the purchase of the said debenture stocks or any part thereof.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

(b) The provisions of this Act with reference to the borrowing of money and the re-borrowing and repayment thereof shall extend and apply to all money borrowed under this subsection and for the purposes of those provisions the prescribed period shall be the period of fifty years from the appointed day.

Proceeds of
sale of sur-
plus lands.

43. So long as any lands remain to be acquired by the Board under the authority of any of the Acts of the Company and the Acts or parts of Acts incorporated therewith they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing in pursuance of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied and any other moneys received on capital account under this Act the Board shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Ministry of Health Provided that—

- (1) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase :
- (2) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Return to
Minister of
Health with
respect to
repayment
of debt.

44.—(1) The clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Board under the authority of this Act.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the clerk or other the chief accounting officer of the Board and shall be transmitted within one month after the making of the request and

in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court. A.D. 1924.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Board shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

45. All moneys borrowed by the Board under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for working capital) to which capital is properly applicable. Application of money borrowed.

46. The Board shall apply all money received by them on account of the revenue of their undertaking in manner and in the order following (that is to say):— Application of revenue.

First In payment of the interest on so much of the debenture stocks of the Company as shall for the time being be subsisting;

Secondly In payment of the working and establishment expenses and cost of maintenance of the undertaking of the Board;

Thirdly In payment of the interest on moneys borrowed by the Board for the purposes of their undertaking;

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 Geo. 5.]
Water Board Act, 1924.

A.D. 1924.

Fourthly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of their undertaking and in respect of the sinking fund provided under the section of this Act of which the marginal note is "Sinking fund for debenture stocks of Company";

Fifthly In providing a reserve fund (if the Board think fit) by setting aside such money as they think reasonable (not exceeding in any one financial year a sum equal to one half of one per centum upon the total capital expenditure by the Board as at the termination of the immediately preceding financial year) and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to five per centum of the aggregate capital expenditure for the time being on the undertaking of the Board which fund shall be applicable to answer any deficiency at any time happening in the income of the Board from their undertaking or to meet any extraordinary claim or demand at any time arising against the Board in respect of their undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum;

and the balance remaining in any year of the revenue of the undertaking of the Board (including the interest of the reserve fund when such fund amounts to the prescribed maximum) shall be carried forward to the revenue account of the next succeeding year and shall be applicable to the reduction of the price of water supplied by the Board within the limits of supply either in that year or at the expiration of each period of five years as the Board may determine,

47. Any deficiency in revenue of the undertaking of the Board in any year shall be made good in the first instance out of the reserve fund if there be any such fund or if and so far as such reserve fund shall be insufficient for the purposes then the same shall be carried forward to the debit of the revenue account of the next succeeding year and shall be paid out of that revenue.

A.D. 1924.
 —
 Provisions
 for defi-
 ciencies.

48. All expenses incurred by the Board in carrying into execution the provisions of this Act except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for may be paid out of the revenues of the Board.

Expenses of
 execution of
 Act.

49. The Board may pay any reasonable expenses incurred by reason of the attendance of members of the Board at conferences or meetings which they shall attend outside the district of the constituent authority by whom they are appointed.

Power to
 apply funds
 for certain
 purposes.

50.—(1) The Board may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Board in such manner as the Board direct Any auditor or auditors appointed by the Board under the provisions of this section and for the time being holding office is or are in this section referred to as “the appointed auditor.”

Appointed
 auditors.

(2) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Board and may be for such term and subject to such conditions as the Board may think fit.

(3) The accounts of the income and expenditure of the Board shall be made up yearly to the thirty-first day of March and shall be audited by the appointed auditor and he shall be entitled to require from any officer of the Board all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(4) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Board such observations and recommendations (if any) as he may deem necessary or expedient with respect to the accounts and any matter arising thereout or in connection therewith.

A.D. 1924.

PART V.

MISCELLANEOUS.

Subsidiary
powers of
Board.

51.—(1) The Board shall for the purposes of their powers and duties under this Act or otherwise with respect to the supply of water within the limits of supply have power:—

- (a) To acquire hire erect and furnish such buildings and offices as they may require; and
- (b) To purchase water in bulk from any local authority company or person supplying water under parliamentary authority:

And for the purpose of taking any supply of water purchased in bulk the Board may have and be entitled to exercise and enjoy outside the limits of supply all the rights powers and authorities conferred by the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and the said provisions shall apply to so much of any street or road outside the limits of supply as the Board shall require to break up for the purposes aforesaid as if the same were streets or roads within such limits.

(2) The Board shall also have power to promote or oppose any Bill in Parliament or oppose any Provisional or departmental Order and to prosecute or defend legal proceedings.

(3) The Board may pay the costs and expenses of and incidental to the promotion of or opposition to any such Bill in Parliament or the opposition to any such Provisional or departmental Order out of their revenues as part of their working expenses Provided that:—

- (a) No expenses in relation to the promotion of any such Bill shall be paid as aforesaid unless incurred in pursuance of a resolution passed at a meeting of the Board by an absolute majority of the whole number of the Board after ten clear days' notice by public advertisement of such meeting and of the purposes thereof in two newspapers circulating in the districts of the constituent authorities such notice to be in addition to the ordinary notices required for summoning such meeting;

(b) No further expenses shall be incurred or paid as
aforesaid after the deposit of the Bill unless the
propriety of the promotion of the Bill shall be
confirmed by such absolute majority at a further
meeting of the Board to be held in pursuance of a
similar notice not less than fourteen days after
the deposit of the Bill in Parliament and shall
have received the approval of the Ministry of
Health.

A.D. 1924.

52. In the exercise of the powers by the sections of
this Act of which the marginal notes are "Powers in
relation to water mains" and "Subsidiary powers of
Board" conferred upon the Board in respect of any main
road bridge approach culvert drain pipe or other property
belonging to or repairable by the county council the
Board shall be subject to the provisions of section 49 (For
protection of the county council of Stafford) of the Act of
1922 instead of (in the case of the exercise by the Board of
the powers of the first mentioned section) the restrictions
imposed by or referred to in section 54 of the Public
Health Act 1875 and the said section 49 shall apply
accordingly as if the Board had been referred to therein
instead of "the company."

For pro-
tection of
Stafford-
shire County
Council.

53. In the exercise of the powers of the sections of
this Act of which the marginal notes are "Powers in
relation to water mains" and "Subsidiary powers of
Board" conferred upon the Board in respect of any
railway or works of the London Midland and Scottish
Railway Company or any bridge over the Trent and
Mersey Canal or any branch thereof or the approaches to
any such bridge which the railway company are liable to
maintain or within the boundary of the property of the
railway company the Board shall be subject to the
provisions of subsections (1) (2) (10) and (11) of section 51
(For protection of North Staffordshire Railway Company)
of the Act of 1922 instead of (in the case of the exercise by
the Board of the powers of the first mentioned section)
the restrictions imposed by or referred to in section 54
of the Public Health Act 1875 and the said section 51 shall
apply accordingly as if the Board had been referred to
therein instead of "the company."

For pro-
tection of
London
Midland and
Scottish
Railway
Company.

54.—(1) The Board and each of the constituent
authorities or any local authority any part of whose

As to collec-
tion of rates
&c.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 Geo. 5.]
Water Board Act, 1924.

A.D. 1924. — district is situate within the limits of supply may enter into and carry into effect agreements with respect to the collection by such authority of the rates and charges which the Board are authorised to levy and take for and in connection with the supply of water within the district of such authority.

(2) Any water rate or charge which may be payable to any constituent or local authority for collection by them on behalf of the Board by virtue of any agreement made in pursuance of subsection (1) of this section may subject to the provisions of the section of this Act of which the marginal note is "Dates for payment of water rates" be demanded collected and recovered—

(a) In the case of the Stoke Corporation with and in like manner as the consolidated rate levied under the Stoke-on-Trent Corporation Act 1923 and the same books may be used for the said rates and charges; and

(b) In the case of any other constituent or local authority with and in like manner as the other rates rents and charges for the time being leviable by them or any or either of such rates rents and charges.

Confirma-
tion of bye-
laws.

55. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Board under the powers of this Act.

Extensions
of sections
176 and 303
of Public
Health Act
1875 to
Board.

56.—(1) Section 176 (Regulations as to purchase of land) and section 303 (Power to repeal and alter local Acts) of the Public Health Act 1875 shall extend and apply to and the powers thereof may be exercised by the Board with respect to the acquisition of such lands and the construction of such works as shall be specified in any Provisional Order to be made under the said sections or either of them and not involve in any one case an expenditure exceeding ten thousand pounds and with respect to minor amendments of the provisions of this or any other Act relating to the Board or of any Provisional Order made in pursuance of the provisions of this section and confirmed by Parliament as if the Board were a local authority within the meaning of those sections and the limits of supply were their district and as if the purposes and subject matters of their undertaking were purposes.

[14 & 15 GEO. 5.] *Staffordshire Potteries* [Ch. lxviii.]
Water Board Act, 1924.

and subject matters of the Public Health Act 1875 and on the petition or application of the Board the Ministry of Health may subject to the provisions of this section make such orders as they are by those sections empowered to make on the petition or application of a local authority. A.D. 1924.

(2) The provisions of this section shall be in addition to and not in derogation of any other powers conferred by this Act.

57. Section 259 (Appearance of local authorities in legal proceedings) and section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 are hereby incorporated with this Act and shall extend and apply to the Board and the members officers and clerk of the Board as if the Board were a local authority within the meaning of such sections respectively and the purposes of this Act were purposes of the Public Health Act 1875. Incorporation of sections 259 and 265 of Public Health Act 1875.

58.—(1) The Ministry of Health may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Ministry of Health under the Public Health Act 1875. Inquiries by Ministry of Health.

(2) The Board shall pay to the Ministry of Health any expenses incurred by that Ministry in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Ministry for the services of such inspector.

59. The Board shall be deemed to be a local authority within the meaning of the Local Taxation Returns Acts 1860 and 1877. Local taxation returns.

60. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

61. Where the payment of more than one sum by any person is due under this Act or any other Act or Order relating to the Board any summons or warrant Several sums in one summons or warrant.

[Ch. lxxviii.] *Staffordshire Potteries*. [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924. — issued for any of the purposes of such Acts or Orders in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Recovery of penalties &c. **62.** Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands. **63.** Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Application of penalties. **64.** All penalties recoverable under this Act or under any byelaw thereunder shall except in the case of penalties recovered against the Board be paid to the treasurer and be by him carried to the credit of the revenue of the undertaking of the Board.

Authentication and service of notices &c. **65.**—(1) Where any notice or demand requires authentication by the Board the signature of the clerk or other duly authorised officer of the Board shall be sufficient authentication.

(2) Notices demands orders precepts and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order precept or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Saving rights of the Duchy of Lancaster. **66.** Nothing contained in this Act shall extend or operate to authorise the Board to take use enter upon or in any manner interfere with any land soil water or hereditament or any land parcel of any manor or any manorial rights or any other rights of whatsoever

description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the chancellor for the time being of the said Duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said Duchy. A.D. 1924.
—

67. If the sum of eight hundred and forty thousand pounds mentioned in the section of this Act of which the marginal note is "Sale and purchase of undertaking of Company" shall not be paid by the Board to the Company by the thirtieth day of June one thousand nine hundred and twenty-five the provisions of this Act shall cease and determine and any moneys which may have been paid by the Board to the Company and any property or assets which may have been handed over by the Company to the Board shall forthwith be repaid or re-transferred to the Board or the Company respectively. Cesser of Act if purchase not completed.

68. All costs charges and expenses incurred by the constituent authorities of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall in the first instance be paid by the constituent authorities in proportion to their respective assessable values but the amounts so paid shall be repaid to the constituent authorities by the Board out of the moneys to be borrowed by them under the powers of this Act. Costs of Act.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 Geo. 5.]
Water Board Act, 1924.

A.D. 1924. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

Session and Chapter.	Short Title.
16 & 17 Vict. c. cxviii.	The Staffordshire Potteries Waterworks Consolidation and Extension Act 1853.
24 & 25 Vict. c. cxlvi. -	The Staffordshire Potteries Waterworks Amendment Act 1861.
31 & 32 Vict. c. cxxxi.	The Staffordshire Potteries Waterworks Act 1868.
51 & 52 Vict. c. clvii. -	The Staffordshire Potteries Waterworks Act 1888.
2 & 3 Geo. 5. c. lxxv. -	The Staffordshire Potteries Waterworks Act 1912.
12 & 13 Geo. 5. c. lxviii.	The Staffordshire Potteries Waterworks Act 1922.

THE SECOND SCHEDULE.

PRESENT CAPITAL OF THE COMPANY.

SHARE CAPITAL.

Act.	Description.	Authorised.	Issued.	Premiums.	Remaining to be issued.
		£	£	£	£
1853	Ordinary 10 % stock -	105,000	105,000	—	—
1861	Ordinary 10 % stock -	35,000	35,000	—	—
1868	Ordinary 10 % stock -	105,000	105,000	—	—
1888	New Ordinary 7 % stock	180,000	112,480	67,520	—
1912	New Ordinary 7 % stock } 5 % preference stock }	180,000	{ 23,081 150,000	— 1,963	{ 4,956
1922	New ordinary 7 % stock or preference stock.	54,000	—	—	54,000
	Total - - -	659,000	530,561	69,483	58,956

LOAN CAPITAL.A.D. 1924.

Act.	Description.	Autho- rised.	Issued.	Pre- miums.	Remain- ing to be issued.
		£	£	£	£
1853	4 % debenture stock -	30,000	30,000	—	—
1861	4 % debenture stock -	8,750	8,750	—	—
1868	4 % debenture stock -	26,250	26,250	—	—
1888	3½ % debenture stock -	60,000	56,450	1,903	3,550
1912	Debenture stock - -	60,000	—	—	60,000
1922	Debenture stock - -	144,500	—	—	144,500
	Total - -	329,500	121,450	1,903	208,050

THE THIRD SCHEDULE.

CONSTITUTION AND PROCEEDINGS OF THE STAFFORDSHIRE
POTTERIES WATER BOARD.

PART I.

PROVISIONS AS TO APPOINTMENT AND QUALIFICATION OF
MEMBERS TENURE OF OFFICE CASUAL VACANCIES &C.

(1) The first appointment of members of the Board by each constituent authority and by the county council shall take place at a meeting of the constituent authority and of the county council respectively to be held within three months after the passing of this Act or within such further time as the Ministry of Health shall allow and the members so appointed shall subject to the provisions of this Act continue in office for such period not being less than one year as the constituent authority by whom they are appointed and the county council respectively shall determine but not beyond the first day in the month of May nineteen hundred and twenty-six.

(2) Each constituent authority and the county council shall at their respective annual meetings in any year appoint such members as may be necessary in order to bring the number of members appointed by them up to the number of members of the Board whom they are by this Act authorised to appoint to hold office for such period not being less than one year nor more than three years as they may respectively determine.

(3) If any constituent authority or the county council fail to appoint first members of the Board or to fill any vacancy as by this Act provided it shall be competent nevertheless for the other

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924. members of the Board to carry this Act into execution and if any constituent authority or the county council fail subsequently to appoint members of the Board at the proper time for their appointment the then existing members or member of the Board representing such authority or the county council as the case may be and qualified to be members or a member of the Board shall continue in office till their successors are appointed.

(4) A person shall not be qualified to be a member of the Board unless he is a member of the body by which he is appointed.

(5) A person who is a member of two or more constituent authorities or of one or more constituent authorities and the county council shall not be qualified to represent more than one of them and if the same person shall be appointed a member of the Board by more than one constituent authority or by one or more constituent authorities and the county council he shall choose under which appointment he will serve and the other appointment or appointments shall be deemed void.

(6) If a member of the Board ceases to be a member of the body by whom he has been appointed or becomes disqualified he shall cease to be a member of the Board.

(7) A person shall be disqualified for being appointed or being a member of the Board if he :—

(a) Hold any paid office under the Board save as permitted by this Act; or

(b) Is concerned in any bargain or contract entered into with the Board or participates in the profit of any such bargain or contract or of any work done under the authority of the Board:

Provided that a person shall not be disqualified from being appointed or being a member of the Board by reason of his being interested—

(a) in the sale or lease of any lands or in any loan of money to the Board or in any contract with the Board for the supply from land of which he is owner or occupier of water or materials for work done by or under the authority of the Board; or

(b) in any newspaper in which any advertisement relating to the affairs of the Board is inserted; or

(c) in any bargain or contract with the Board as a shareholder in any company;

but he shall not vote at any meeting of the Board on any question in which he is so interested.

(8) Whenever an appointment of a member of the Board has been made the clerk to the body by whom the appointment was made shall by writing under his hand certify the appointment to the Board and shall forthwith transmit the certificate

to the clerk Provided that in the case of a first appointment the clerk of each constituent authority and of the county council shall return the names of the members appointed by his authority to the clerks of each of the other constituent authorities and to the clerk of the county council. A.D. 1924.

(9) A member of the Board may resign his office by notifying in writing his intention so to do to the chairman or clerk of the Board.

(10) If any member of the Board dies or resigns or is disqualified or ceases to be a member of the Board the body by whom he was appointed may at any time after the happening of such vacancy appoint another person to be a member of the Board in his place who shall continue in office only so long as the person in whose place he is appointed would have been entitled to continue in office.

(11) Subject to the provisions of this Act the term of office of chairman and vice-chairman shall be one year.

(12) A chairman or vice-chairman may if otherwise qualified be re-appointed and shall continue in office until his successor is appointed unless he dies or resigns or becomes disqualified or ceases to be a member of the Board before the appointment of his successor.

(13) On a casual vacancy occurring in the office of chairman or vice-chairman by reason of death resignation disqualification or otherwise another member shall be appointed in his place to hold office until the time when the person in whose place he is appointed would regularly have gone out of office.

(14) If any member is absent from meetings of the Board for more than six months consecutively except for some reason approved by the Board he shall on the expiration of that period vacate his office.

(15) Where any member becomes disqualified for holding office or vacates his office by reason of absence or otherwise the Board shall forthwith declare the office to be vacant and shall notify the fact to the body by whom he was appointed in such manner as the Board think fit.

PART II.

PROVISIONS AS TO MEETINGS AND PROCEEDINGS.

(1) The Board shall hold their first meeting at such place and on such day and at such time as may be agreed between the town clerk of Stoke-on-Trent the town clerk of Newcastle-under-Lyme and the clerk to the Wolstanton Council or as failing such agreement shall be appointed for the purpose by the Ministry of Health and subsequent meetings of the Board (including their

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924. — annual meetings) shall be held at such places on such days and at such times as the Board may from time to time appoint provided that the Board shall hold their annual meeting within fourteen days after the thirtieth day of April in every year.

(2) The chairman or any three or more members of the Board may at any time by writing addressed and sent to the clerk of the Board require a special meeting to be convened and the clerk shall convene a meeting accordingly.

(3) The first meeting of the Board shall be convened by the town clerk of Stoke-on-Trent the town clerk of Newcastle-under-Lyme and the clerk to the Wolstanton Council jointly and every subsequent meeting shall be convened by the clerk and every meeting shall be convened by circular delivered to each member of the Board or sent by post to or delivered at his residence two clear days at least before the day of the meeting.

(4) To constitute a meeting of the Board there must be present not less than one-third of the members of the Board.

(5) At their first meeting and subsequently at their annual meeting in each succeeding year the Board shall appoint a chairman and vice-chairman for the ensuing year.

(6) (a) At every meeting the chairman of the Board shall preside but if he is not present at the time appointed for the meeting the vice-chairman if present shall preside and if neither the chairman nor the vice-chairman are present the members then present shall choose one of their number to preside at that meeting.

(b) Every question at a meeting of the Board shall be decided by a majority of the votes of the members present and voting on that question and in the case of an equality of votes the person presiding at the meeting shall have a second or casting vote Provided always that if at any meeting neither the chairman nor vice-chairman be present and there be an equality of votes in choosing the member to preside at such meeting it shall be decided by lot which of the members having an equal number of votes shall so preside.

(7) Minutes of the proceedings of every meeting shall be drawn up and fairly entered in a book kept for that purpose or printed and kept in the form of a book and copies or prints of such minutes after each meeting be forwarded by the clerk to the clerk of each constituent authority and to the clerk of the county council and the minutes shall be signed by the chairman or other member presiding at the next ensuing meeting.

(8) (a) A minute of the proceedings of the Board or of a committee of the Board signed at the same or the next ensuing meeting by a member of the Board describing himself as or appearing to be chairman of the meeting at which the minute is signed shall be received in evidence without further proof,

(b) Until the contrary is proved every meeting whereof a minute had been so made shall be deemed to have been duly convened and held and all the members of the meeting shall be deemed to have been duly qualified and where the proceedings are proceedings of a committee the committee shall be deemed to have been duly constituted and to have had power to deal with the matters referred to in the minutes.

A.D. 1924.
—

PART III.

GENERAL.

(1) Subject to the provisions of this Act the Board may make standing orders for the regulation of their proceedings.

(2) The Board may appoint out of their own body such and so many committees either of a general or special nature consisting of such number of persons as they think fit for any purposes which in the opinion of the Board would be better regulated and managed by means of committees and may delegate with or without any restrictions or conditions as they may think fit any of their powers or duties (except any power of raising money and except any power of fixing or varying the charges to be made for the supply of water by the Board) to any committee of the Board so appointed. The provisions of section 82 of the Local Government Act 1888 with respect to proceedings of committees of county councils shall apply to committees of the Board as if they were committees of a county council.

(3) The Board may appoint and may remunerate a clerk deputy-clerk manager engineer treasurer accountant and such other officers clerks and servants as they may from time to time think requisite and all officers clerks and servants so appointed shall be removable by the Board at their pleasure. No member of the Board or of any of the constituent authorities or of the county council shall be an officer of the Board but the same person may be and continue an officer of the Board and of a constituent authority or of the county council. All acts and things required or authorised to be done by the clerk may (subject to any restrictions imposed by the Board) be done by the deputy-clerk and a deputy-clerk may act notwithstanding a vacancy in the office of clerk.

(4) No act or proceeding of the Board shall be questioned on account of any vacancy in their body or on account of any defect in the appointment of any member of the Board.

[Ch. lxviii.] *Staffordshire Potteries* [14 & 15 GEO. 5.]
Water Board Act, 1924.

A.D. 1924.

THE FOURTH SCHEDULE.

LIMITS OF SUPPLY OF WATER BY THE BOARD.

PART I.

County borough of Stoke-on-Trent.
Borough of Newcastle-under-Lyme.
Urban district of Wolstanton United.
Urban district of Kidsgrove.
The parish or township of Clayton in the rural district of Newcastle-under-Lyme.
The parish of Trentham in the rural district of Stone.
The parish of Bagnall and Norton-in-the-Moors in the rural district of Leek.

PART II.

Urban district of Audley.
Urban district of Stone.
The parishes or townships of Keele Madeley Whitmore Maer and Chapel Chorlton (otherwise Chapel and Hill Chorlton) in the rural district of Newcastle-under-Lyme.
The parish of Ashley in the rural district of Blore Heath.
The parishes of Barlaston Fulford Hilderstone Stone Rural Swynnerton Standon and Eccleshall in the rural district of Stone.
The parishes of Draycott-in-the-Moors Forsbrook Caverswall Dilhorne and Consall (alias Cunsall Township) and Cheddleton (otherwise Cheddleton and Basford Township) in the rural district of Cheadle.
The parishes of Endon and Stanley Longsdon and Horton and Horton Hay Blackwood and Crowborough in the rural district of Leek.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
Adastral House, Kingsway, London, W.C. 2; 28, Abingdon Street, London, S.W. 1;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
or 120, George Street, Edinburgh;
or through any Bookseller.